

Budapest Treaty - Articles

ARTICLE 2

Title: Definitions

Jurisdiction: International

Category: Patents

Source Citation: Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Article 2, 1977, as amended in 1980

Plain English Summary:

Article 2 defines the key terms used throughout the Budapest Treaty, including patent, deposit of a microorganism, patent procedure, depositary institution, international depositary authority, and depositor. For an Ayurvedic patent system, this Article is important when an invention involves a microorganism whose deposit may be relevant to patent procedure.

The Exact Legal Text:

Article 2 Definitions

For the purposes of this Treaty and the Regulations:

(i) references to a “patent” shall be construed as references to patents for inventions, inventors’ certificates, utility certificates, utility models, patents or certificates of addition, inventors’ certificates of addition, and utility certificates of addition;

(ii) “deposit of a microorganism” means, according to the context in which these words appear, the following acts effected in accordance with this Treaty and the Regulations: the transmittal of a microorganism to an international depositary authority, which receives and accepts it, or the storage of such a microorganism by the international depositary authority, or both the said transmittal and the said storage;

(iii) “patent procedure” means any administrative or judicial procedure relating to a patent application or a patent;

(iv) “publication for the purposes of patent procedure” means the official publication, or the official laying open for public inspection, of a patent application or a patent;

(v) “intergovernmental industrial property organization” means an organization that has filed a declaration under Article 9(1);

(vi) “industrial property office” means an authority of a Contracting State or an intergovernmental industrial property organization competent for the grant of patents;

(vii) “depository institution” means an institution which provides for the receipt, acceptance and storage of microorganisms and the furnishing of samples thereof;

(viii) “international depository authority” means a depository institution which has acquired the status of international depository authority as provided in Article 7;

(ix) “depositor” means the natural person or legal entity transmitting a microorganism to an international depository authority, which receives and accepts it, and any successor in title of the said natural person or legal entity;

(x) “Union” means the Union referred to in Article 1;

(xi) “Assembly” means the Assembly referred to in Article 10;

(xii) “Organization” means the World Intellectual Property Organization;

(xiii) “International Bureau” means the International Bureau of the Organization and, as long as it subsists, the United International Bureaux for the Protection of Intellectual Property (BIRPI);

(xiv) “Director General” means the Director General of the Organization;

(xv) “Regulations” means the Regulations referred to in Article 12.

Keywords/Triggers:

microorganism deposit, patent procedure, international depository authority, depository institution, microorganism patent, biological invention, depositor, patent application

ARTICLE 3

Title: Recognition and Effect of the Deposit of Microorganisms

Jurisdiction: International

Category: Patents

Source Citation: Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Article 3, 1977, as amended in 1980

Plain English Summary:

Article 3 establishes international recognition of a microorganism deposit made with an international depository authority when a Contracting State allows or requires such a deposit for patent procedure. The recognition includes the fact and date of the deposit and recognition that

a supplied sample is a sample of the deposited microorganism. For an Ayurvedic invention involving a microorganism, this can be relevant when the biological material needs to be deposited as part of the patent procedure.

The Exact Legal Text:

Article 3

Recognition and Effect of the Deposit of Microorganisms

(1)

(a) Contracting States which allow or require the deposit of microorganisms for the purposes of patent procedure shall recognize, for such purposes, the deposit of a microorganism with any international depositary authority. Such recognition shall include the recognition of the fact and date of the deposit as indicated by the international depositary authority as well as the recognition of the fact that what is furnished as a sample is a sample of the deposited microorganism.

(b) Any Contracting State may require a copy of the receipt of the deposit referred to in subparagraph (a), issued by the international depositary authority.

(2) As far as matters regulated in this Treaty and the Regulations are concerned, no Contracting State may require compliance with requirements different from or additional to those which are provided in this Treaty and the Regulations.

Keywords/Triggers:

microorganism deposit patent, international depositary authority, patent deposit recognition, deposit receipt, biological material patent, microorganism patent procedure, deposit date, patent disclosure

ARTICLE 4

Title: New Deposit

Jurisdiction: International

Category: Patents

Source Citation: Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Article 4, 1977, as amended in 1980

Plain English Summary:

Article 4 provides a mechanism for making a new deposit when an international depositary authority cannot provide samples of the originally deposited microorganism, for example

because the microorganism is no longer viable or export/import restrictions prevent the sample from being provided. Under specified conditions, the new deposit can be treated as having been made on the date of the original deposit. For an Ayurvedic biotechnology invention, this could matter if a microorganism used in the invention has been deposited for patent purposes and a replacement deposit becomes necessary.

The Exact Legal Text:

Article 4 New Deposit

(1)

(a) Where the international depositary authority cannot furnish samples of the deposited microorganism for any reason, in particular,

(i) where such microorganism is no longer viable, or

(ii) where the furnishing of samples would require that they be sent abroad and the sending or the receipt of the samples abroad is prevented by export or import restrictions,

that authority shall, promptly after having noted its inability to furnish samples, notify the depositor of such inability, indicating the cause thereof, and the depositor, subject to paragraph (2) and as provided in this paragraph, shall have the right to make a new deposit of the microorganism which was originally deposited.

(b) The new deposit shall be made with the international depositary authority with which the original deposit was made, provided that:

(i) it shall be made with another international depositary authority where the institution with which the original deposit was made has ceased to have the status of international depositary authority, either entirely or in respect of the kind of microorganism to which the deposited microorganism belongs, or where the international depositary authority with which the original deposit was made discontinues, temporarily or definitively, the performance of its functions in respect of deposited microorganisms;

(ii) it may be made with another international depositary authority in the case referred to in subparagraph (a)(ii).

(c) Any new deposit shall be accompanied by a statement signed by the depositor alleging that the newly deposited microorganism is the same as that originally deposited. If the allegation of the depositor is contested, the burden of proof shall be governed by the applicable law.

(d) Subject to subparagraphs (a) to (c) and (e), the new deposit shall be treated as if it had been made on the date on which the original deposit was made where all the preceding statements concerning the viability of the originally deposited microorganism indicated that the

microorganism was viable and where the new deposit was made within three months after the date on which the depositor received the notification referred to in subparagraph (a).

(e) Where subparagraph (b)(i) applies and the depositor does not receive the notification referred to in subparagraph (a) within six months after the date on which the termination, limitation or discontinuance referred to in subparagraph (b)(i) was published by the International Bureau, the three-month time limit referred to in subparagraph (d) shall be counted from the date of the said publication.

(2) The right referred to in paragraph (1)(a) shall not exist where the deposited microorganism has been transferred to another international depositary authority as long as that authority is in a position to furnish samples of such microorganism.

Keywords/Triggers:

new microorganism deposit, replacement deposit, non-viable microorganism, patent deposit replacement, depositary authority failure, microorganism sample, deposit date, biological patent

ARTICLE 5

Title: Export and Import Restrictions

Jurisdiction: International

Category: Patents

Source Citation: Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Article 5, 1977, as amended in 1980

Plain English Summary:

Article 5 addresses national restrictions on the export or import of certain microorganisms. It states that such restrictions should apply to microorganisms deposited or intended for deposit under the Treaty only when necessary for national security or because of risks to health or the environment. For an Ayurvedic biotechnology invention involving a microorganism, this provision may become relevant if the biological material needs to cross national borders for deposit or patent-related purposes.

The Exact Legal Text:

Article 5

Export and Import Restrictions

Each Contracting State recognizes that it is highly desirable that, if and to the extent to which the export from or import into its territory of certain kinds of microorganisms is restricted, such restriction should apply to microorganisms deposited; or destined for deposit, under this Treaty

only where the restriction is necessary in view of national security or the dangers for health or the environment.

Keywords/Triggers:

microorganism import, microorganism export, biological material restrictions, patent microorganism transfer, health restrictions, environmental restrictions, national security, biological patent.

ARTICLE 6

Title: Status of International Depositary Authority

Jurisdiction: International

Category: Patents

Source Citation: Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Article 6, 1977, as amended in 1980

Plain English Summary:

Article 6 establishes the requirements for an institution to qualify as an International Depositary Authority (IDA). The institution must have appropriate facilities and staff, operate impartially, accept specified microorganisms, examine and store them, issue receipts and viability statements, maintain secrecy, and provide samples according to the Treaty and Regulations. This is relevant to an Ayurvedic patent system because a microorganism-related invention may depend on a recognized authority being able to receive and maintain the biological deposit.

The Exact Legal Text:

Article 6

Status of International Depositary Authority

(1) In order to qualify for the status of international depositary authority, any depositary institution must be located on the territory of a Contracting State and must benefit from assurances furnished by that State to the effect that the said institution complies and will continue to comply with the requirements specified in paragraph (2). The said assurances may be furnished also by an intergovernmental industrial property organization; in that case, the depositary institution must be located on the territory of a State member of the said organization.

(2) The depositary institution must, in its capacity of international depositary authority:

(i) have a continuous existence;

- (ii) have the necessary staff and facilities, as prescribed in the Regulations, to perform its scientific and administrative tasks under this Treaty;
- (iii) be impartial and objective;
- (iv) be available, for the purposes of deposit, to any depositor under the same conditions;
- (v) accept for deposit any or certain kinds of microorganisms, examine their viability and store them, as prescribed in the Regulations;
- (vi) issue a receipt to the depositor, and any required viability statement, as prescribed in the Regulations;
- (vii) comply, in respect of the deposited microorganisms, with the requirement of secrecy, as prescribed in the Regulations;
- (viii) furnish samples of any deposited microorganism under the conditions and in conformity with the procedure prescribed in the Regulations.

(3) The Regulations shall provide the measures to be taken:

- (i) where an international depositary authority discontinues, temporarily or definitively, the performance of its functions in respect of deposited microorganisms or refuses to accept any of the kinds of microorganisms which it should accept under the assurances furnished;
- (ii) in case of the termination or limitation of the status of international depositary authority of an international depositary authority.

Keywords/Triggers:

international depositary authority, microorganism deposit authority, patent microorganism storage, biological sample storage, viability testing, microorganism secrecy, depositary institution, patent deposit facility

ARTICLE 7

Title: Acquisition of the Status of International Depositary Authority

Jurisdiction: International

Category: Patents

Source Citation: Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Article 7, 1977, as amended in 1980

Plain English Summary:

Article 7 explains how a depositary institution acquires the status of an International Depositary Authority. The relevant Contracting State or intergovernmental industrial property organization must communicate the required declaration and information to WIPO's Director General, after which the status takes effect according to the Treaty. For an Ayurveda patent database, this is mainly supporting information about which institutions can have the international status necessary for microorganism deposits under the Treaty.

The Exact Legal Text:

Article 7

Acquisition of the Status of International Depositary Authority

(1)

(a) A depositary institution shall acquire the status of international depositary authority by virtue of a written communication addressed to the Director General by the Contracting State on the territory of which the depositary institution is located and including a declaration of assurances to the effect that the said institution complies and will continue to comply with the requirements specified in Article 6(2). The said status may be acquired also by virtue of a written communication addressed to the Director General by an intergovernmental industrial property organization and including the said declaration.

(b) The communication shall also contain information on the depositary institution as provided in the Regulations and may indicate the date on which the status of international depositary authority should take effect.

(2)

(a) If the Director General finds that the communication includes the required declaration and that all the required information has been received, the communication shall be promptly published by the International Bureau.

(b) The status of international depositary authority shall be acquired as from the date of publication of the communication or, where a date has been indicated under paragraph (1)(b) and such date is later than the date of publication of the communication, as from such date.

(3) The details of the procedure under paragraphs (1) and (2) are provided in the Regulations.

Keywords/Triggers:

international depositary authority status, IDA acquisition, microorganism deposit institution, WIPO depositary authority, patent deposit authority, depositary institution recognition, microorganism patent procedure

ARTICLE 8

Title: Termination and Limitation of the Status of International Depositary Authority

Jurisdiction: International

Category: Patents

Source Citation: Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, Article 8, 1977, as amended in 1980

Plain English Summary:

Article 8 establishes how the status of an International Depositary Authority can be terminated or limited if the institution no longer satisfies the Treaty requirements. It also provides procedures for withdrawing the assurances supporting an authority's status. For an Ayurvedic patent system, this is mainly institutional background. It matters because the validity and availability of microorganism deposit services depend on the status of the relevant International Depositary Authority.

The Exact Legal Text:

Article 8

Termination and Limitation of the Status of International Depositary Authority

(1)

(a) Any Contracting State or any intergovernmental industrial property organization may request the Assembly to terminate, or to limit to certain kinds of microorganisms, any authority's status of international depositary authority on the ground that the requirements specified in Article 6 have not been or are no longer complied with. However, such a request may not be made by a Contracting State or intergovernmental industrial property organization in respect of an international depositary authority for which it has made the declaration referred to in Article 7(1)(a).

(b) Before making the request under subparagraph (a), the Contracting State or the intergovernmental industrial property organization shall, through the intermediary of the Director General, notify the reasons for the proposed request to the Contracting State or the intergovernmental industrial property organization which has made the communication referred to in Article 7(1) so that that State or organization may, within six months from the date of the said notification, take appropriate action to obviate the need for making the proposed request.

(c) Where the Assembly finds that the request is well founded, it shall decide to terminate, or to limit to certain kinds of microorganisms, the status of international depositary authority of the authority referred to in subparagraph (a). The decision of the Assembly shall require that a majority of two-thirds of the votes cast be in favor of the request.

(2)

(a) The Contracting State or intergovernmental industrial property organization having made the declaration referred to in Article 7(1)(a) may, by a communication addressed to the Director General, withdraw its declaration either entirely or in respect only of certain kinds of microorganisms and in any event shall do so when and to the extent that its assurances are no longer applicable.

(b) Such a communication shall, from the date provided for in the Regulations, entail, where it relates to the entire declaration, the termination of the status of international depositary authority or, where it relates only to certain kinds of microorganisms, a corresponding limitation of such status.

(3) The details of the procedure under paragraphs (1) and (2) are provided in the Regulations.